

FILED

2008 MAY 29 AM 11:14

KING COUNTY
SUPERIOR COURT CLERK
SEATTLE, WA

Superior Court of Washington
County of King

In re the Custody of:

TIMOTHY E. BENNETT, II

Child,

MELVINA ROBERSON,

Petitioner,

and

ZACKARIAH J. BENNETT and KELLY J.
BENNETT,
Respondents.

No.

08-3-03956-4 SEA

Motion/Declaration for
Ex Parte Restraining Order
and for Order to Show Cause
(Nonparental Custody)
(MTSC)

I. Motion

Based upon the reasons set forth in the declaration below, the undersigned moves the court for a temporary order and order to show cause.

1.1 Ex Parte Restraining Order

A temporary restraining order should be granted without written or oral notice to the other party or the other party's lawyer because immediate and irreparable injury, loss, or damage will result before the other party or the other party's lawyer can be heard in opposition. This order should restrain or enjoin:

☒ ZACKARIAH J. BENNETT [Name] from disturbing the peace of MELVINA ROBERSON [Name(s)].

☒ ZACKARIAH J. BENNETT [Name] from going onto the grounds of or entering the home, work place or school of the other party, or the day care or school of the following named children: TIMOTHY E. BENNETT, II.

☒ ZACKARIAH J. BENNETT [Name] from knowingly coming within or knowingly remaining within 100 feet (Distance) of the home, work place or school of the other party or the day care or school of the following children: TIMOTHY E. BENNETT, II.

ORIGINAL

- ☒ **ZACKARIAH J. BENNETT** [Name] from molesting, assaulting, harassing, or stalking **MELVINA ROBERSON** [Name(s)].
- ☒ **ZACKARIAH J. BENNETT** and **KELLY J. BENNETT** [Name] from removing any of the children from the state of Washington.
- ☒ Other: **ZACKARIAH J. BENNETT** [Name] should be required to appear and show cause why these restraints should not be continued in full force and effect pending final determination of this action.

1.2 Other Ex Parte Relief

- ☒ Order that **MELVINA ROBERSON** [Name] shall be the person with whom the children reside until the hearing.

1.3 Surrender of Deadly Weapons

- ☒ Does not apply.

1.4 Other Temporary Relief

- ☐ Does not apply.
- ☒ **ZACKARIAH J. BENNETT** and **KELLY J. BENNETT** [Name(s)] also be required to appear and show cause why the court should not enter a temporary order which:
 - ☒ grants the petitioner custody of the following children: **TIMOTHY E. BENNETT, II.**
 - ☒ grants visitation for the mother as set forth in the attached proposed Residential Schedule, or as follows: **Reasonable unlimited visitation.**
 - ☒ grants visitation for the father as set forth in the attached proposed Residential Schedule, or as follows: **None.**
 - ☒ orders child support as determined pursuant to the Washington State Support Schedule.
 - ☐ orders him or her to pay temporary attorney fees, other professional fees and costs in the amount of \$_____ to: _____.

1.5 Indian Child Welfare Act

The moving party requests that the court enter an order finding that:

Indian Child Status:

- ☐ The child(ren) are Indian child(ren) as defined by the Indian Child Welfare Act, 25 USC § 1903, and notice of this action must be given in accordance with 25 U.S.C. § 1912(a).
- ☒ None of the child(ren) are Indian child(ren) as defined by 25 U.S.C. § 1903.

1.6 Other

5-28-08
Date

O.W. Hollowell
O.W. Hollowell WSBA 9163

II. Declaration

2.1 Injury to be Prevented

The ex parte restraining order requested in paragraph 1.1 above is to prevent the following injury (define the injury): **Physical and emotional harm to Petitioner and to the minor child Timothy E. Bennett.**

2.2 Reasons for Other Ex Parte Relief

- ☐ Does not apply.
- ☒ It is necessary that the court issue the other ex parte relief requested in paragraph 1.2 above for the reason set forth below: **Respondent's history of drug use, criminal activity and domestic violence.**

2.3 Reasons why the Injury May Be Irreparable

This injury may be irreparable because: **Physical harm to petitioner and/or minor child.**

2.4 Clear and Convincing Reasons Why Weapons Should Be Surrendered

- ☒ Does not apply.

2.5 Reasons for a Temporary Order

- ☐ Does not apply.
- ☒ It is necessary that the court issue a temporary order with the relief requested in paragraph 1.4 above for the following reasons: **To establish custody of minor child and prevent irreparable harm.**

2.6 Service Member or Dependant of Service Member

- ☐ If the nonmoving party is not present and:
a) is on active duty and is a National Guard member or Reservist residing in Washington, or

b) is a dependent of a National Guard member or Reservist residing in Washington on active duty, list the reasons why this temporary order should be granted despite the absence of the other party: **Not applicable**

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at Carnation, Washington on May 28, 2008.


MELVINA ROBERSON

Do not attach financial records, personal health care records or confidential reports to this declaration. Such records should be served on the other party and filed with the court using one of these cover sheets:

- 1) Sealed Financial Source Documents (WPF DRPSCU 09.0220) for financial records
- 2) Sealed Personal Health Care Records (WPF DRPSCU 09.0260) for health records
- 3) Sealed Confidential Report (WPF DRPSCU 09.270) for confidential reports

If filed separately using a cover sheet, the records will be sealed to protect your privacy (although they will be available to all parties in the case, their attorneys, court personnel and certain state agencies and boards.) See GR 22(C)(2).

III. Efforts to Give Other Party Notice

The following efforts have been made to give the other party or other party's lawyer notice and the following reasons exist why notice should not be required: **Respondent mother joins motion. Respondent father out of state and has history of violence-no notice given .**

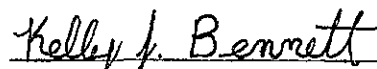
Dated: 5-28-08


O.W. HOLLOWELL WSBA 9163

Joinder in Motion:

I, Respondent Kelly J. Bennett, join in this motion.

Signed at Carnation, Washington on May 28, 2008.


KELLY J. BENNETT